

25STCV26054 25STCV26054

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV26054 Hearing Date: August 12, 2026 Dept: 406

ADRIENNE BLAINE EISNER,

Plaintiff,

v.

LATITUDE INVESTMENTS,

LLC, et al.,

Defendants.

Case No.: 25STCV26054

Hearing Date: August 12, 2026

[TENTATIVE]

order RE:

plaintiff's motion to compel further
responses

BACKGROUND

On September 5, 2025, Plaintiff

Adrienne Blaine Eisner filed this action against Defendants Latitude

Investments, LLC (Latitude), Richard Beck (Beck), and Diamond Construction

& Remodeling Inc. (Diamond). The complaint asserts (1) negligence, (2) fraud,

and (3) negligent misrepresentation.

According to the complaint, Latitude purchased the property in June 2022 and hired Diamond to remodel it. In March 2023, Plaintiff bought the property from Latitude under a written purchase agreement which Beck signed on behalf of Latitude. Beck allegedly represented to Plaintiff that the remodeling was done competently and according to code. However, after the purchase, Plaintiff allegedly discovered extensive defects with the property.

On July 1, 2026, Plaintiff filed the instant motion to compel Latitude's further responses to requests for production. Latitude filed an opposition on July 30, 2026. Plaintiff filed a reply on August 5, 2026.

LEGAL STANDARD

Upon receiving responses to its discovery requests, the propounding party may move for an order compelling further responses if the responses are incomplete or evasive, or objections are without merit or too general. (Code Civ. Proc., §§ 2030.300(a), 2031.310(a), 2033.290(a).) The party seeking production of documents bears the initial burden of showing good cause through a fact-specific showing of relevance. (*Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.) Once this showing is made, the burden shifts to the responding party to justify any objections. (*Ibid.*)

MEET AND CONFER

A motion to compel further must be accompanied by a meet and confer declaration demonstrating an attempt to resolve the matter informally. (Code Civ. Proc., §§ 2030.300(b)(1), 2031.310(b), 2033.290(b).) The Court finds that Plaintiff has satisfied the meet and confer requirement. (See Sanders Decl.)

DISCUSSION

The RFPs seek profit and loss statements, documents regarding capitalization, balance sheets and bank statements, and records relating to capital contributions. Latitude responded with objections only.

Plaintiff argues that the requests are relevant to proving an alter ego relationship between Beck and Latitude. However, the actual requests are not tailored to this purpose. The RFPs are overbroad in seeking “all” documents over a nearly 10-year period. The subject transaction occurred in 2022 and 2023. The RFPs also seek wholesale balance sheets and bank statements with no tailoring to the issues in litigation. Therefore, Plaintiff has not established good cause for the requests.

CONCLUSION

Plaintiff's motion to compel further responses is DENIED. Sanctions are denied as the parties acted with substantial justification.